

Summary of Changes

Commercial Combined & Media Liability
Comparison of policy wording 0223C
(previous) and the final wording (0526 +
Round-8 enhancements)
Prepared for broker and client use



WORDING COMPARISON: 0223C → 0526

SUMMARY OF CHANGES

Basis of this comparison. This Summary of Changes compares the previous wording (TMHCC Media Combined 0223C) with the new wording (TMHCC Media Combined 0526). It is a high-level guide for brokers and clients and does not replace either policy wording, the Schedule or any endorsement. Where a change reduces, restricts or qualifies cover this is stated plainly. Limits, sub-limits and excesses are governed by the Schedule. Items marked for review require confirmation by underwriting/legal.

Status key

Green – broader / beneficial

Amber – clarification / operational

Red – restriction / reduced cover

EXECUTIVE SUMMARY

The 0526 wording is a substantial restructure and expansion of the 0223C wording. The policy grows from 13 to 15 operative Sections, with three significant new covers: Commercial Legal Expenses (Section 13, underwritten by ARAG), Management Liability (Section 14) and CyberGuard™ Cyber Liability (Section 15).

The property account has been restructured. The standalone Information Technology Section in 0223C has been removed and its cover (including computer equipment and Breakdown) consolidated into the Business “All Risks” Section (now “Premises Risk only”) and the renamed and expanded Property & Equipment Section (formerly “Production Property”). Sections from the old Section 4 onward have been renumbered.

The General Policy Definitions, Conditions and Exclusions are largely carried across without material change. The most important wording change for claims handling is that notification of a claim is now expressed as a Condition Precedent to liability for Sections 1–11. The new specialist Sections each carry their own definitions, exclusions and claims conditions, which prevail for those Sections.

HEADLINE CHANGES AT A GLANCE

Area	What changed (0223C → 0526)	Status
Policy structure	Expanded from 13 to 15 operative Sections	Neutral
Commercial Legal Expenses	New Section 13 (ARAG) – legal costs for insured events	New cover
Management Liability	New Section 14 – D&O / corporate / employment practice	New cover
Cyber Liability	New Section 15 – CyberGuard™ first & third-party cyber	New cover
Information Technology	Standalone IT Section removed; IT & Breakdown cover folded into Sections 1 & 2	Clarification
Property restructure	Section 2 renamed Production Property → Property & Equipment; Section 1 now “Premises Risk only”	Neutral
Section numbering	Sections renumbered from old Section 4 onward	Clarification
Claim notification	Now an express Condition Precedent to liability (Sections 1–11)	Restrictive
Intruder alarm condition	Maintenance condition now excludes “bells only” alarms	Clarification
General exclusions	Substantively unchanged; now apply to Sections 1–11 (was 1–12)	Neutral

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COVER ENHANCEMENTS (BROADER / BENEFICIAL)

- Three new insuring Sections – Commercial Legal Expenses, Management Liability and CyberGuard™ Cyber Liability – materially broaden the package where selected in the Schedule.
- Section 2 (Property & Equipment) has a clearer, expanded scope, with an explicit worldwide Geographical Limit and a dedicated Artists' Technical Equipment extension (GBP 20,000).
- Computer / IT equipment and Breakdown cover is retained and integrated into Section 1, which now expressly lists the IT extensions (Accidental Discharge, Additional Rental Charge, Expediting Costs, Incompatibility and Involuntary Betterment).
- The Security Devices maintenance condition no longer applies to “bells only” intruder alarms, a small easing of the protection requirement.

Enhancements are subject to the Schedule, the relevant limits and each Section's own terms.

COVER RESTRICTIONS / REDUCTIONS AND ITEMS TO CHECK

- Claim notification (Sections 1–11) is now an express Condition Precedent to liability – late notification could entitle insurers to decline a claim. This is the single most important change for the insured to understand.
- The standalone Information Technology Section has been removed. Its cover appears to be reproduced within Sections 1 and 2, but the discrete IT structure (and any IT-specific “Data Storage” condition precedent) should be checked to confirm there is no gap in breakdown cover or IT extensions.
- The new specialist Sections (13, 14, 15) each carry their own, sometimes broader, exclusions and conditions which prevail over the General Policy terms for those Sections.
- Carried-over conditions and exclusions previously referenced the now-removed “Information Technology Section”; these have been corrected in the final amended wording so the cover applies via the Business “All Risks” Section, which now contains the IT Property cover (see Reviewer Notes).

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EXCLUSIONS DEEP DIVE

Each key exclusion in the new wording is assessed below against the previous wording.

Exclusion	Status vs 0223C	Practical impact for the insured	Severity
Communicable Disease	Unchanged (renumbered)	Disease-related loss excluded across property/BI; no change in effect	Low
Coronavirus / Covid-19	Unchanged (sections renumbered 7&8 → 6&7)	Covid-related liability excluded on PL/Products where shown	Low
Property Cyber and Data Endorsement	Unchanged wording	Cyber loss and loss of data excluded from the property Sections; limited fire/explosion and data-media write-backs retained	Medium
Terrorism (non-Terrorism Sections)	Unchanged	Property/BI terrorism excluded unless the Terrorism Section is operative	Low
War & Kindred Risks	Unchanged	War and related perils excluded	Low
Nuclear / Pollution / Northern Ireland / Sonic Bang	Unchanged	No change in effect (Pollution retains GBP 500,000 Production Property write-back)	Low
Date Recognition / Fines & Penalties / Excess / Contribution	Unchanged	No change in effect	Low
Section 14 (Management Liability) exclusions	New	Conduct, insured-v-insured, bodily injury/property damage, pollution and Loss carve-outs apply to the new D&O cover	Medium
Section 15 (Cyber) exclusions	New	War and failure of core infrastructure, prior known incidents and betterment excluded under the new cyber cover	Medium
Section 13 (Legal Expenses) exclusions	New	No reasonable prospects, pre-inception matters, dishonesty and unconsented costs excluded	Medium

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Conclusion: the General Policy exclusions are substantively unchanged between 0223C and 0526. The additional exclusion content in the new wording accompanies the three new Sections and should be explained to clients when those Sections are selected.

CONDITIONS, WARRANTIES AND CLAIMS CHANGES

Condition / clause	0223C	0526	Status
Notification of a claim (Sections 1–11)	"The Insured shall notify ... as soon as practicable"	"It is a Condition Precedent to liability ... will notify ... as soon as practicable"	Restrictive
Security Devices (intruder alarm)	Applies to any Intruder Alarm Installation	Applies to alarms "other than a bells only"	Clarification
Counsel reference	"Queens Counsel"	"King's Counsel"	Clarification
Claims conditions applicability	Sections 1–12	Sections 1–11; 12–15 where stated; 14–15 have own provisions	Neutral
Notification to the Police	Condition precedent + "may prejudice" softener	Condition precedent (softener removed)	Clarification
Protection & Maintenance conditions	Sections 1–12	Sections 1–11 (substantively carried over)	Neutral
Production Indemnity conditions precedent	Production planning, rushes, duplicates, etc.	Retained without material change	Neutral

LIMITS, SUB-LIMITS AND EXCESS CHANGES

- Carried-over sub-limits appear consistent between the wordings, including witness/court attendance costs (GBP 500 / GBP 200 per day), Criminal Prosecution Defence Costs (GBP 250,000; GBP 5,000,000 for manslaughter), asbestos and pollution fire/explosion write-backs (GBP 500,000) and the Media Liability Virus sub-limit (GBP 500,000).
- New limits introduced with the new Sections: Legal Expenses GBP 100,000 per claim / GBP 1,000,000 aggregate employment compensation; Production Indemnity Agency & Talent Costs GBP 30,000; Section 2 Artists' Technical Equipment GBP 20,000; Cyber Court Attendance GBP 500 per day; Management Liability and Cyber limits as stated in the Schedule.
- All sums insured, limits of indemnity, sub-limits and excesses remain Schedule-driven – confirm the amounts against the Schedule for each operative Section.

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SECTION-BY-SECTION COMPARISON

0223C Section	0526 Section	Status
1 – Business “All Risks”	1 – Business “All Risks” (Premises Risk only; now incl. IT & Breakdown)	Broader
2 – Production Property “All Risks”	2 – Property & Equipment “All Risks” (renamed / expanded)	Broader
3 – Business Interruption “All Risks”	3 – Business Interruption “All Risks”	Neutral
4 – Information Technology	Removed – consolidated into Sections 1 & 2	Clarification
5 – Terrorism	4 – Terrorism	Neutral
6 – Employers’ Liability	5 – Employers’ Liability	Neutral
7 – Public Liability	6 – Public Liability	Neutral
8 – Products Liability	7 – Products Liability	Neutral
9 – Money	8 – Money	Neutral
10 – Goods in Transit	9 – Goods in Transit	Neutral
11 – Loss of Licence	10 – Loss of Licence	Neutral
12 – Production Indemnity “All Risks”	11 – Production Indemnity “All Risks”	Neutral
13 – Media Liability	12 – Media Liability	Neutral
—	13 – Commercial Legal Expenses (ARAG)	New cover
—	14 – Management Liability	New cover
—	15 – CyberGuard™ Cyber Liability	New cover

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ROUND-8 WORDING ENHANCEMENTS (FINAL WORDING)

In addition to the 0223C → 0526 restructure summarised above, the FINAL wording incorporates the following discrete, individually accept/reject-able enhancements. In the tracked-changes wording these are captured in full against the 0223C baseline. Every Section 12 (Media Liability) item is applied as a tracked change but **REQUIRES** legal/underwriting sign-off.

Ref	Location	Change	Sign-off
A4	Section 8 – Money (Sub-Section 1)	New extension 'Money – Touring and Entertainment Activities'	No
A5	Section 13 – Commercial Legal Expenses	Definition amendment – 'Employee'	No
A6	Section 12 – Media Liability	Definition amendment – 'Computer System'	Yes
B1	Section 12 – Media Liability (Extensions)	New cover – Distributors & Purchasers	Yes
B2	Section 12 – Media Liability (additional covers)	New cover – Representation Costs at Investigations/Inquiries	Yes
B3	Section 12 – Media Liability (additional covers)	New cover – Journalistic Source-Protection Costs	Yes
B5	Section 12 – Media Liability (additional covers)	Clarification + contribution – Criminal & Regulatory Defence Costs	Yes
B6	Section 12 – Media Liability (Extensions)	New optional – Worldwide Territory & Jurisdiction	Yes
B7	Section 12 – Media Liability (dispute clause)	New clause – King's Counsel determination	Yes
B8	Section 12 – Media Liability (Exclusions)	Write-back – Seepage & Pollution (negligent advice)	Yes

Items deliberately NOT added: Personal Accident and Travel. Personal Assault under the Money Section (Section 8, Sub-Section 2) is distinct from Personal Accident and is retained unchanged. Patent infringement is deliberately left excluded; an asbestos negligent-advice write-back is parked for consideration. No existing sub-limit was lowered; TMHCC already meets or exceeds every evidenced competitor sub-limit, or is schedule-driven.

BROKER / CLIENT COMMUNICATION POINTS

- Three significant new covers are now available – discuss whether to select Commercial Legal Expenses, Management Liability and Cyber, and the limits required.
- Explain the new claim-notification Condition Precedent – prompt notification is essential to protect the right to claim.
- Confirm that the IT / computer equipment and Breakdown cover now sitting in Sections 1 and 2 meets the client's needs, with no gap against the former Information Technology Section.
- Highlight that the new Sections operate on a claims-made basis and carry their own exclusions and conditions.
- Re-check sums insured, limits and excesses in the Schedule, particularly for the new Sections.

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REVIEWER NOTES (FOR UNDERWRITING / LEGAL SIGN-OFF)

The drafting points originally identified in the supplied 0526 wording have been corrected in the final amended wording delivered alongside this document. They are recorded here for transparency, with the items still recommended for sign-off.

- CORRECTED: references to a non-existent “Section 16” (Insuring Agreement, General Conditions and Policy Exclusions) have been amended to read Sections 13/14/15. This arose from deleting the old Section 4 (Information Technology) after the three new Sections had been numbered.
- CORRECTED: stale references to the removed standalone “Information Technology Section” have been taken out of the conditions and exclusions; the IT cover and its conditions now sit within the Business “All Risks” Section (Section 1), which is already listed in those clauses.
- CORRECTED: the Section 15 (CyberGuard™) wording has been restyled to match the rest of the document and now appears in the live table of contents.
- OPEN: minor typographical / OCR artefacts remain in a few clauses (e.g. Conduct of Claims, Duty to Defend) – recommend a final proofreading pass before external issue.
- OPEN: confirm whether the IT-specific “Data Storage” condition precedent from the former IT Section should be reproduced within Section 1.
- OPEN: some internal applicability lists still use the former name “Production Property” for Section 2 (now titled “Property & Equipment”) – recommend aligning the naming.
- All limits and excesses are Schedule-driven; this comparison does not confirm amounts.
- This document is a professional comparison aid prepared from the supplied wordings. It does not constitute legal advice and does not alter the policy wording; material points should be confirmed with underwriting / legal sign-off.

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